

before liability is established would alter the status quo rather than preserve it.

9. 9:00 AM CASE NUMBER: MSC18-01132

CASE NAME: SCHWENDEMAN VS. TRAVEL STAFF

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM (CONTINUED FROM 11.20.2025)**

FILED BY:

TENTATIVE RULING:

Based on the Supplemental the declaration of the Settlement Administrator, the Court concludes that the disbursement of PAGA Settlement Funds is complete and directs the administrator to release the remaining attorneys' fees.

Law & Motion

Add On

10. 9:00 AM CASE NUMBER: C25-02332

CASE NAME: DYNE WHITMORE VS. ANTIOCH UNIFIED SCHOOL DISTRICT,

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLTF**

FILED BY: WHITMORE, DYNE SARAH

TENTATIVE RULING:

Counsel to appear.

The Court advanced this Motion to be Relieved as Counsel for Plaintiff so that it could be addressed early in the case, as Defendant has not yet been served. The Court is inclined to grant the motion, especially given the young age of the case. The Court is concerned, however, as it has not received proof that Plaintiff Dyne Whitmore has received notice of this Motion. The Court requires proof that Plaintiff Whitmore has been fully advised of all rights and risks relating to this Motion before granting it.

11. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

***HEARING ON MINOR'S COMPROMISE AS TO ROMEO CERNA**

FILED BY: CERNA, ROMEO

TENTATIVE RULING:

Summary

Petitioner Romeo Cerna by and through his Guardian Ad Litem Marcie Espinoza's Petition for Approval of Compromise of Minor Tristan Cerna's ("Minor") Claim Against Defendant Damien Sean Ross ("Petition"), filed on March 17, 2026, is granted, as set forth below.

Background

On October 14, 2022, Minor Romeo Cerna and others filed a complaint against Defendant Damien Sean Ross and others. The case was consolidated with another case involving the same series of events. The case involved a series of car accidents that ultimately led to the deaths of two individuals, one of whom was Minor Cerna's mother. Defendant Ross was one of the individuals who was involved in the car accidents, prior to the deaths. Minor Cerna was not present at the scene and alleges damages associated with the death of his mother.

At this time, Minor Cerna has settled his claims against Defendant Ross, subject to a pending Application for Determination of Good Faith Settlement, which was filed March 6, 2026. Petitioner has now filed a Petition through counsel Christopher Viadro, to compromise this particular claim. This Defendant offered settlement in the amount of \$7,500 all of which is to be paid to Petitioner behalf of Minor to be placed into a blocked account. There are no deductions for fees, costs, or medical expenses. According to the Petition, fees and costs are being covered—at least in part—by other resolutions in this case. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Although the amount to resolve this particular claim is small, the Court is also aware of arguments regarding this Defendant's relative fault in the injuries sustained by the Minor. Accordingly, the **Petition is granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on March 17, 2026. The approval of this petition is, however, conditioned upon a determination that the settlement has been made in good faith per CCP Section 877.6, which is expected to be finalized within a week of this order. Finally, the Court authorizes GAL Espinoza to sign the settlement release attached to the Petition as Attachment 10c.